

25STCV09825 25STCV09825

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SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

25STCV09825

ARMANDO VALDES PENALOZA, et al. vs OLIVIA CASTANEDA, et al.

July 31, 2026

8:30 AM

NATURE OF PROCEEDINGS: DEFENDANT OLIVIA CASTANEDA'S MOTION TO COMPEL PLAINTIFF ARACELI MURRIETA GARCIA'S RESPONSES TO DEFENDANT'S SPECIAL INTERROGATORIES, SET ONE, AND REQUEST FOR MONETARY SANCTIONS.

RULING:

The Court grants the Motion.

On or before August 24, 2026, Plaintiff ARACELI MURRIETA GARCIA shall serve initial responses, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Defendant OLIVIA CASTANEDA's Special Interrogatories, Set One.

On or before that same date, Plaintiff ARACELI MURRIETA GARCIA shall pay discovery sanctions in the sum of \$810.00 to Defendant OLIVIA CASTANEDA, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., §

2023.030.)

Defendant to give notice.

I. BACKGROUND

On April 2, 2025, ARMANDO VALDES PENALOZA and ARACELI MURRIETA GARCIA (Plaintiffs) filed a "Motor Vehicle" Form Complaint against OLIVIA CASTANEDA and RIGOBERTO CASTANEDA MENDEZ (Defendants). Plaintiffs allege that a vehicular accident occurred at Main Street near 42nd Street, Los Angeles, due to negligence causing damages including medical care.

On January 16, 2026, OLIVIA CASTANEDA (Defendant) filed the Motion to Compel Responses to Special Interrogatories, and for sanctions, because Plaintiff failed to serve any response to the duly served discovery, notwithstanding meeting and conferring.

The Opposition reports that the client's whereabouts remain unknown.

II. LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Monetary discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

III. ANALYSIS

Defendant states that Plaintiff failed to respond and responses to Special Interrogatories are overdue.

"If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

Here, the Opposition represents that Plaintiffs' counsel has had no contact with the client notwithstanding efforts to locate her. Plaintiffs' counsel also explains that a Motion to be Relieved as Counsel has been filed and is pending.

But a client's unknown whereabouts it not substantial justification for avoiding discovery sanctions. The failure of clients to serve responses, due to their failure to keep counsel informed of their whereabouts, may be found to be a willful failure to comply with discovery requirements. (Steven M. Garber & Associates v. Eskandarian (2007) 150 Cal.App.4th 813, 821; Cornwall v. Santa Monica Dairy (1977) 66 Cal.App.3d 250, 253.)

IV. CONCLUSION

Therefore, the Court grants the Motion, as specified herein.